THE COLLEGIUM CLASH

Should a judge be picked by his peers or should the executive have a say in the matter? A bitter battle has broken out between the Union government and the judiciary over the appointment of judges to the top courts

By Kaushik Deka

On December 7, vice-president and Rajya Sabha chairperson Jagdeep Dhankhar, in his maiden speech in the House, launched a scathing attack on the Supreme Court for its 2015 judgment scrapping the National Judicial Appointments Commission (NJAC) Act, 2014. Unanimously passed by both houses of Parliament, the NJAC had sought to overturn the collegium system of judicial appointments. Calling it an instance of "severe compromise of parliamentary sovereignty", Dhankhar said that there was "no parallel to such a development in democratic history where a duly legitimised constitutional prescription has been judicially undone".

With this, Dhankhar became the latest to join the ongoing debate between the executive and the judiciary over the appointment of judges to the higher courts. The vice-president almost echoed Union law minister Kiren Rijiju, who has repeatedly questioned the collegium system, saying that "nowhere in the world except in India do judges appoint judges".

In the past two months, Rijiju has called the collegium system "opaque" and "not accountable", going to the extent of saying that "judges are often preoccupied with deciding who will be the next judge", ignoring their primary job of delivering justice. Claiming that it is the government's responsibility to appoint judges, he criticised the top court for striking down the NJAC without offering a better alternative. As expected, the judiciary has been defensive about the collegium system. "There is an impression in India that judges appoint judges. It's a wrong impression...the appointment is done through a lengthy consultative process, and many stakeholders consulted. I don't think the process can be more democratic," said Justice N.V. Ramanna, the then Chief Justice of India, in April. Post-retirement, he softened his stand, saying concerns about the collegium system must be addressed.

His successor U.U. Lalit, though, has claimed that the judges-driven system was better than the NJAC. Stronger counters have come from current judges too. Calling the Supreme Court a "most transparent institution", the bench of justices M.R. Shah and C.T. Ravikumar, on December 3, said the collegium system should not be derailed on the basis of statements of "some busybody".

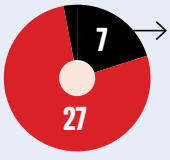
The top court, instead, blamed the government for the delays in clearing the names for appointment of judges. For instance, the collegium's resolution to elevate Bombay High Court chief justice Dipankar Dutta as SC judge has been pending with the Centre since September 23. On November 11, the SC cited 11 names recommended by the collegium between September 2021

STUCK IN A LIMBO

Both the Centre and the collegiums are guilty of delays in judicial appointments

SUPREME COURT

Sanctioned strength: **34**



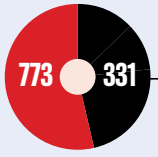
1 Proposal sent for appointment to the government*

● Filled positions
● Vacancies

as of December 4

HIGH COURTS

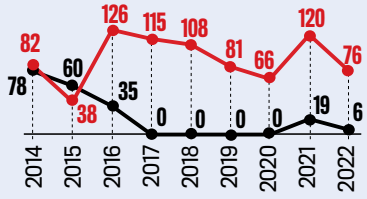
Sanctioned strength: **1,104**



148 Proposals for appointment pending with the govt

183* Proposals for appointment yet to be sent by the HCs*

*Lying vacant for five years; as of Nov. 25, 2022



● Filled positions ● Vacancies
— No. of high court judges appointed
— No. of new seats of judges created

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ASIT ROY